CITY OF OPA-LOCKA

"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
WEDNESDAY, March 27, 2019
7:00 P.M.
Sherbondy Village Auditorium
215 Perviz Avenue
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Matthew Pigatt called the meeting to order at 7:00 p.m. on Wednesday, March 27, 2019 at the Sherbondy Village Auditorium, 215 Perviz Avenue, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Mayor Matthew Pigatt, Vice Mayor Chris Davis, Commissioner Joseph L. Kelley, Commissioner Alvin Burke, and Commissioner Sherelean Bass. Also in attendance were: Acting City Manager Newall Daughtrey, City Attorney Vincent Brown, and City Clerk Joanna Flores.

3. INVOCATION:

The invocation was delivered by Commissioner Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

The following items were pulled from the Consent Agenda to be discussed separately under Action Items: pulled 13-2 (Mayor Pigatt).

7. APPROVAL OF AGENDA:

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

8. APPROVAL OF MINUTES:

Regular Commission Meeting Minutes – February 13, 2019

It was moved by Commissioner Bass, seconded by Commissioner Kelley to approve the minutes from the Regular Commission Meeting of February 13, 2019.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

Special Commission Meeting Minutes – February 27, 2019

It was moved by Commissioner Kelley, seconded by Commissioner Burke to approve the minutes from the Special Commission Meeting of February 27, 2019.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

9. DISTRICT ONE/DISTRICT TWO - COUNTY COMMISSIONER REPORT:

Cedric Brazle, Commissioner Jean Monestime's Office, District II, announced a ribbon cutting ceremony on next Friday at 3:30 p.m. at Oak Grove Park for a new center that will be opening. This event is free and open to the public.

Commissioner Kelley requested that Commissioner Monestime hold one of the Haitian outreach events in the City this year so that the residents from Opa-locka can benefit.

10. PUBLIC PRESENTATION:

11. CITIZENS' INPUT:

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, thanked the manager and staff for looking into the incident with the fire hydrant from last year. She asked that the commission look into the legislation that was brought forth previously for underground plumbing on newly built projects. The budget for the Community Development Director includes a ten percent (%10) salary from the CRA and she has not seen the reimbursement for this amount. The budget for the mayor and commissions secretary has changed and she wants to know what is going on with that. Lastly, the water bills are still too high and this is ongoing.

Rhonda Usry, 2231 York Street, Opa-locka, FL, said her water bill is also too high and something is not right. She has received two and three water bills per months for the last two months and it makes no sense; is this legal? She is on a fixed income and cannot afford to pay all of these bills.

Reverend Buster McFadden, 651 Jann Avenue, Opa-locka, FL, said even Ray Charles can see that something is wrong with the water bills. He asked why he is receiving several water bills for one month. This is highway robbery and it is wrong. He hopes the City will get it together because it is ridiculous.

Mayor Pigatt asked the manager to address the water bill concerns.

Acting City Manager Daughtrey said that the problems with the water bills have been going on for over fifteen (15) years. The problem is that the City has been working diligently to turn the water billing system over to Miami-Dade County. He asked the attorney for clarity.

City Attorney Brown said the City has put the water billing issue on the record many times and no further discussion should be had since the water bills are currently in litigation.

Mayor Pigatt said that while the City is currently in litigation, the matter can be addressed without going into specifics.

Acting City Manager Daughtrey said when the previous manager was here the residents were not billed for a couple of months. The City is late with those bills, but is not in a position to write off the monies before turning the billing over to the county. The City is responsible for collecting those bills.

City Attorney Brown said that the City wants to be able to inform the residents of what is going on with the billing, but it is currently being sued for almost twenty million dollars ($20,000,000.00). He does not want and cannot allow anyone from staff to make any comments that may potentially harm the City. This will not be done on his watch because it can harm not only the City, but the residents.

12. ACTION ITEMS:

1 (13-2). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO PIGGYBACK ON THE STATE OF FLORIDA DEPARTMENT OF MANAGEMENT SERVICES CONTRACT WITH AT&T MOBILE NATIONAL ACCOUNTS, LLC, FOR THE USE BY THE OPA-LOCKA INFORMATION TECHNOLOGY DEPARTMENT FOR MOBILE COMMUNICATIONS SERVICES IN AN AMOUNT NOT TO EXCEED FORTY-THOUSAND DOLLARS ($40,000.00), IN A FORM ACCEPTABLE TO THE CITY ATTORNEY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by City Attorney Brown.

It was moved by Commissioner Burke, seconded by Vice Mayor Davis for discussion.

Mayor Pigatt said that he pulled the item because he wanted to get clarity form the manager or I.T. on what this does.

Information Technology Director Nelson Rodriguez said he recommended this migration because after Hurricane Irma it became apparent that they needed to upgrade so that during disasters when power is down, communications can continue. It will also allow for centralized archiving of text messages. This will include GPS for all City vehicles to keep track of where the City's fleet is at all times.

Mayor Pigatt said that he supports the item for these reasons.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

13. CONSENT AGENDA:

1 (13-1). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE 2015-2016 AUDITED FINANCIAL STATEMENT THAT WAS PREVIOUSLY PRESENTED TO THE CITY COMMISSION; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

2 (13-3). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE BROWN LAW GROUP, LLC, TO DEFEND BARRY E. MUKAMAL, AS CHAPTER 7 TRUSTEE OF THE ESTATE OF ROY STEPHEN SHIVER., VS. CITY OF OPA-LOCKA, FLORIDA, CASE NUMBER 2018-028275 INVOLVING BREACH OF CONTRACT, EFFECTIVE IMMEDIATELY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Attorney*

The above resolutions were read by Attorney Brown.

It was moved by Commissioner Kelley, seconded by Commissioner Burke to pass the resolutions.

The motion on the resolutions passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

14. NEW ITEMS:

15. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

16. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING ORDINANCE(S):

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING THE ANNUAL ADOPTED GENERAL FUND BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2018 AND ENDING SEPTEMBER 30, 2019, ADJUSTING REVENUES AND EXPEDNTITURES AS REFLECTED IN EXHIBIT "A"; PROVIDING FOR EXPENDITURE OF FUNDS ESTABLISHED BY THE BUDGET; AUTHORIZING THE CITY MANAGER TO TAKE CERTAIN ACTIONS; PROVIDING FOR PPROPRIATION OF ALL BUDGET EXPENDITURES; PROVIDING FOR FEES CONSISTENT WITH APPROPRIATION AND AMENDMENT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above ordinance was read by Attorney Brown.

Mayor Pigatt opened the floor for a public hearing,

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, said that she sees where the City is trying to be transparent, but the information that is provided for the residents is not legible and looks like there was no more ink when making the copies for the meeting. She said it looks like the information that was presented on Saturday is different from what is here now and she hopes the information is correct because she cannot see it.

There being no further persons to speak on the public hearing, the floor was closed.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis for discussion.

Mayor Pigatt asked the manager if any of the information has changed since Saturday.

Acting City Manager Daughtrey said, "No."

Mayor Pigatt said he hopes the budget amendment includes the hiring of experienced individuals to fill key positions in the City.

Acting City Manager Daughtrey said those positions are in the process of being filled.

There being no further discussion, the motion on the ordinance passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes

Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING THE ANNUAL ADOPTED PROPRIETARY AND SPECIAL REVENUE FUND BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2018 AND ENDING SEPTEMBER 30, 2019, ADJUSTING REVENUES AND EXPEDNTITURES AS REFLECTED IN EXHIBIT "A"; PROVIDING FOR EXPENDITURE OF FUNDS ESTABLISHED BY THE BUDGET; AUTHORIZING THE CITY MANAGER TO TAKE CERTAIN ACTIONS; PROVIDING FOR PPROPRIATION OF ALL BUDGET EXPENDITURES; PROVIDING FOR FEES CONSISTENT WITH APPROPRIATION AND AMENDMENT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above ordinance was read by Attorney Brown.

Mayor Pigatt opened the floor for a public hearing,

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, said it was mentioned that the risk management should fall under the attorney and this has not been done. She sees a line item for mobile homes and the City has not had mobile homes since the 1980's.

There being no further persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis to pass the ordinance.

There being no further discussion, the motion on the ordinance passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

3. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING THE CITY OF OPA-LOCKA CODE OF ORDINANCES TO REPEAL OPA-LOCKA CODE OF ORDINANCES, CHAPTER 7 BUILDINGS, HOUSING AND STRUCTURAL REGULATIONS, ARTICLE VI FLOOD DAMAGE PROTECTION; TO ADOPT A NEW ARTICLE VI FLOOD DAMAGE PROTECTION; TO ADOPT FLOOD HAZARD MAPS, TO DESIGNATE A FLOOD PLAN ADMINISTRATOR, TO ADOPT PROCEDURES AND CRITERIA FOR DEVELOPMENT IN FLOOD HAZARD AREAS, AND FOR OTHER PURPOSES; PROVIDING FOR APPLICABILITY; SEVERABILITY; AND AN EFFECTIVE DATE. *Sponsored by City Manager*

The above ordinance was read by Attorney Brown.

Mayor Pigatt opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Vice Mayor Davis, seconded by Commissioner Burke for discussion.

Vice Mayor Davis said from his understanding this is federal mandate; he asked for clarity from the manager.

Acting City Manager Daughtrey said this is a federal and state mandate.

There being no further discussion, the motion on the ordinance passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

4. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO CONSIDER ADOPTING A SMALL SCALE AMENDMENT, LAND USE DESIGNATION CHANGE FROM GOVERNMENT TO INDUSTRIAL, FOR THE VACANT PROPERTY AT THE CORNER OF NW 43RD AVENUE AND NW 133RD STREET, OPA-LOCKA, FLORIDA 33054 AND IDENTIFIED BY FOLIO 08-2129-000-0111 IN THE I-3 (LIBERAL INDUSTRIAL) ZONING DISTRICT. LEGAL DESCRIPTION: THE NORTH 480 FEET OF THE WEST 420 FEET OF THE SOUTHWEST ¼ OF THE NORTHEAST ¼ OF THE NORTHWEST ¼ OF SECTION 29, TOWNSHIP 52 SOUTH, RANGE 41 EAST, MIAMI-DADE COUNTY, FLORIDA; PROVIDING FOR APPPROVAL; PROVIDING FOR SCRIVENER'S ERRORS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above ordinance was read by Attorney Brown.

Mayor Pigatt opened the floor for a public hearing,

There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Burke, seconded by Commissioner Kelley to pass the ordinance.

There being no further discussion, the motion on the ordinance passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

B. SECOND READING ORDINANCE(S)/PUBLIC HEARING:

C. RESOLUTIONS:

17. CITY MANAGER'S REPORT:

Acting City Manager Daughtrey said he appreciates the Commission approving the audit because this means after march 31, 2019 the City will have access to over one million dollars ($1,000,000.00). This amount would have been lost if it was not approved. Those funds will be a part of the next budget amendment which is coming soon. The recent killings that have taken place in the City could not have been prevented by law enforcement because both OLPD and Miami-Dade County PD had just patrolled that area and the incident still took place; they are still working on public safety.

Vice Mayor Davis commended the manager for the work he has been doing regarding the safety of the residents.

Commissioner Burke said public safety does not seem to be a high priority in the City and that is not right. He has family who lives in the City and wants them to be safe.

18. OFFICIAL BOARD REPORTS:

19. MAYOR/COMMISSION REPORT:

Vice Mayor Davis said he is pleased that that the policy and procedure issues are slowly being resolved and he is looking forward to receiving more once it is available. He informed the community that the commission is working on their behalf.

Mayor Pigatt said the City is moving forward with all of its projects timely and he hopes this will continue. He also hopes staff will continue to be held accountable and do their jobs effectively and efficiently.

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the commission, it was moved by Commissioner Burke, seconded by Mayor Pigatt to adjourn the meeting at 7:54 p.m.

MAYOR

ATTEST:

CITY CLERK